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They have read you a Clause of a Statute made in Queen *Elizabeth's* Time, by which they say, my Lords the Bishops were under a Curse, if they did not take Care of that Law. Then they shew you some Records, one in *Richard* the Second's time, which they could make little of, by reason their Witness could not read it; but it was, in short, a Liberty given to the King to dispense with the Statute of Provisors. Then they shew you some Journals of Parliament; first in the Year 1662, where the King had granted an Indulgence, and the House of Commons had declared it was not fit to be done, unless it were by Act of Parliament: And they read the King's Speech, wherein he says, *He wish'd he had such a Power*; and so likewise that in 1672, which is all nothing but Addresses and Votes, or Orders of the House, or Discourses, either the King's Speech, or the Subject's Addresses; but these are not Declarations in Parliament that is insisted on by the Council for the King, That what is a Declaration in Parliament is a Law, and that must be by the King, Lords, and Commons: The other is but a common Discourse, but a Vote of the House, or a Signification of their Opinion, and cannot be said to be a Declaration in Parliament. Then they come to that in 1685, where the Commons take Notice of something about the Soldiers in the Army that had not taken the Test, and make an Address to the King about it; but in all these Things (as far as I can observe) nothing can be gather'd out of them one Way or

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other, 'tis all nothing but Discourses. Sometimes this Dispensing Power has been allow'd, as in *Richard* the Second's Time; and sometimes it has been denied, and the King did once wave it; Mr. Solicitor tells you the Reason, There was a *Lump of Money* in the Case: But I wonder indeed to hear it come from him.

Mr. Sol. Gen. My Lord, I never gave my Vote for Money, I assure you.

L. Ch. Just. But those Concessions which the King sometimes makes for the Good of the People, and sometimes for the Profit of the Prince himself, (but I would not be thought to distinguish between the Profit of the Prince and the Good of the People, for they are both one, and what is the Profit of the Prince is always for the Good of the People;) but, I say, those Concessions must not be made Law, for that is reserv'd in the King's Breast, to do what he pleases in it at any Time.

The Truth of it is, the Dispensing Power is out of Case, 'tis only a Word used in the Petition; but truly I will not take upon me to give my Opinion in the Question, to determine that now, for it is not before me: The only Question before me is, and so 'tis before you, Gentlemen, it being a Question of Fact, Whether here be a certain Proof of a Publication? And then the next Question is a Question of Law indeed, Whether, if there be a Publication prov'd, it be a Libel?

Gentlemen, upon the Point of a Publication, I have summ'd up all the Evidence to
you,

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you, and if you believe that the Petition which these Lords presented to the King was this Petition, truly I think that is a Publication sufficient ; if you do not believe it was this Petition, then my Lords the Bishops are not guilty of what is laid to their Charge in this Information, and consequently there needs no Enquiry whether they are guilty of a Libel : But if you do believe that this was the Petition they presented to the King, then we must come to enquire whether this be a Libel.

Now, Gentlemen, any thing that shall disturb the Government, or make Mischief and a Stir among the People, is certainly within the Case of *Libellus Famosis* ; and I must in short give you my Opinion, I do take it to be a Libel. Now, this being a Point of Law, if my Brothers have any Thing to say to it, I suppose they will deliver their Opinions.

Mr. Just. *Holloway*. Look you, Gentlemen, 'tis not usual for any Person to say any Thing after the Chief-Justice has summ'd up the Evidence, 'tis not according to the Course of the Court ; but this is a Case of an extraordinary Nature, and there being a Point of Law in it, 'tis fit every body should deliver their own Opinion : The Question is, Whether this Petition of my Lords the Bishops be a Libel, or no. Gentlemen, the End and Intention of every Action is to be consider'd ; and likewise in this Case we are to consider the Nature of the Offence that these noble Persons are charg'd with ; it is for delivering a Petition, which, according as they have made their Defence,

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was with all the Humility and Decency that could be ; so that if there was no ill Intent, and they were not (as it is nor can be pretended they were) Men of Evil Lives, or the like, to deliver a Petition cannot be a Fault, it being the Right of every Subject to Petition : If you are satisfied there was an ill Intention of Sedition, or the like, you ought to find them Guilty ; but if there be nothing in the Case that you find, but only that they did deliver a Petition to save themselves harmless, and free themselves from blame, by reason of their Disobedience to the King's Command, which they apprehended to be a Grievance to them, and which they could not in Conscience give Obedience to ; I cannot think it is a Libel : It is left to you, Gentlemen, but that is my Opinion.

Ld. Ch. Just. Look you, by the way, Brother, I did not ask you to sum up the Evidence, (for that's not usual) but only to deliver your Opinion, whether it be a Libel or no.

Mr. Just. Powel. Truly I cannot see, for my part, any thing of Sedition, or any other Crime, fixed upon these Reverend Fathers my Lords the Bishops.

For, Gentlemen, to make it a Libel it must be False, it must be Malicious, and it must tend to Sedition ; as to the Falshood, I see nothing that is offered by the King's Council, nor any thing as to the Malice : It was preferred with all the Humility and Decency that became the King's Subjects to approach their Prince with.

Now,

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Now, Gentlemen, the Matter of it is before you ; you are to consider of it, and it is worth your Consideration ; they tell his Majesty, It is not out of averfeness to pay all due Obedience to the King, nor out of a want of Tendernefs to their dissenting Fellow-Subjects, that made them not perform the Command imposed upon them ; but they say, That because they do conceive, that the thing that was Comanded them was againft the Law of the Land, therefore they do defire his Majesty, that he would be pleased to forbear to infift upon it, that they fhould perform that Command which they take to be Illegal.

Gentlemen, we muft confider what they fay is Illegal in it ; they fay, they apprehend the Declaration is Illegal, because it is founded upon a Difpenfing Power, which the King claims, to difpenfe with the Laws concerning Ecclefiastical Affairs.

Gentlemen, I do not remember in any Cafe in all our Law, and I have taken fome Pains upon this Occafion to look into it, that there is any fuch Power in the King, and the Cafe muft turn upon that, in fhort ; If there be no fuch Difpenfing Power in the King, then that can be no Libel which they prefented to the King, which fays, that the Declaration, being founded upon fuch a pretended Power, is Illegal.

Now, Gentlemen, this is a Difpenfation with a Witnefs ! it amounts to an Abrogation and utter Repeal of all the Laws ; for I can fee no difference, nor know of none in Law, be-

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tween the King's Power to dispense with Laws Ecclesiastical, and his Power to dispense with any other Laws whatsoever: If this be once allowed of, there will need no Parliament, all the Legislature will be in the King; which is a thing worth considering, and I leave the Issue to God and your Consciences.

Mr. Just. Allybone. The single Question that falls to my Share, is, to give my Sense of this Petition, whether it shall be in Construction of Law a Libel in itself, or a thing of great Innocence; I shall endeavour to express myself in as plain Terms as I can, and as much as I can by way of Proposition.

And, I think, in the first place, That no Man can take upon him to write against the actual Exercise of the Government, unless he have leave from the Government, but he makes a Libel, be what he writes true or false; for if once we come to impeach the Government by way of Argument, 'tis the Argument that makes it the Government, or not the Government: So that I lay down that in the first place, That the Government ought not to be impeached by Argument, nor the Exercise of the Government shaken by Argument, because I can manage a Proposition in itself doubtful, with a better Pen than another Man: This, say I, is a Libel.

Then I lay down this for my next Position, That no private Man can take upon him to write concerning the Government at all; for what has any private Man to do with the Government, if his Interest be not stirred or shaken?

ken? It is the Business of the Government to manage Matters relating to the Government; it is the Business of Subjects to mind only their own Properties and Interest: If my Interest is not shaken, what have I to do with Matters of Government? They are not within my Sphere: If the Government does come to shake my particular Interest, the Law is open for me, and I may redress myself by Law: And when I intrude myself into other Mens Business, that does not concern my particular Interest, I am a Libeller.

These I have laid down for plain Propositions; now then let us consider further, whether, if I will take upon me to contradict the Government, any specious Pretence that I shall put upon it shall dress it up into another Form, and give it a better Denomination; and truly I think it will not, I think 'tis the worse, because it comes in a better Dress; for by that Rule, every Man that can put on a good Vizard, may be as Mischievous as he will to the Government at the bottom: So that whether it be in the form of a Supplication, or an Address, or a Petition, if it be what it ought not to be, let us call it by its true Name, and give it its true Denomination, It is a Libel.

Then, Gentlemen, consider what this Petition is: This is a Petition relating to something that was done and ordered by the Government. Whether the Reasons of the Petition be true or false, I will not examine that now, nor will I examine the Prerogative of the Crown, but only take Notice that this relates
to

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to the Act of the Government: The Government here has published such a Declaration as this, that has been read, relating to Matters of Government: And shall, or ought, any Body to come and impeach that as illegal which the Government has done? Truly, in my Opinion, I do not think he should, or ought; for by this Rule may every Act of the Government be shaken, when there is not a Parliament *de Facto* sitting.

I do agree, That every Man may petition the Government, or the King, in a Matter that relates to his own private Interest; but to meddle with a Matter that relates to the Government, I do not think my Lords the Bishops had any Power to do more than any others: When the House of Lords and Commons are in being, it is a proper way of applying to the King, there is all the openness in the World, for those that are Members of Parliament, to make what Addresses they please to the Government, for the rectifying, altering, regulating, and making of what Law they please; but if every private Man shall come and interpose his Advice, I think, there can never be an end of advising the Government: I think there was an Instance of this in King *James's* Time, when, by a solemn Resolution, it was declared to be a High Misdemeanor, and next to Treason, to petition the King to put the Penal Laws in Execution.

Mr. Just. Powel. Brother, I think you do mistake a little.

Mr. Just. Allybone. Brother, I dare rely upon
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on it, that I am right; it was so declared by all the Judges.

Mr. Soll. Gen. The Puritans presented a Petition to that purpose, and in it they said, If it would not be granted, they would come with a great Number.

Mr. Just. Powel. Ay, there it is.

Mr. Just. Allybone. I tell you, Mr. Sollicitor, the Resolution of the Judges is, That such a Petition is next door to Treason, a very great Misdemeanor.

Mr. Just. Powel. They accompanying it with Threats of the People's being discontented.

Mr. Just. Allybone. As I remember, it is in the second Part of the Folio 35, or 37, where the Resolution of the Judges is, That to frame a Petition to the King to put the Penal Laws in Execution, is next door to Treason; for (say they) no Man ought to intermeddle without Leave of the Government.

Mr. Serj. Pemberton. That was a Petition against the Penal Laws.

Mr. Just. Allybone. Then I am quite mistaken indeed, in case it be so.

Mr. Serj. Trinder. That is not material at all, which it was.

Mr. Pollixfen. They were threatned, unless their Request were granted, several Thousands of the King's Subjects would be discontented.

Mr. Just. Powel. That is the Reason of that Judgment, I affirm it.

Mr. Just. Allybone. But then, I'll tell you, Brother, again, what is said in that Case that you hinted at, and put Mr. Sollicitor in mind of: For any Man to raise a Report that the

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King will, or will not, permit a Toleration, if either of these be disagreeable to the People, whether he may, or may not, it is against Law; for we are not to measure Things from any Truth they have in themselves, but from that Aspect they have upon the Government; for there may be every Tittle of a Libel true, and yet it may be a Libel still: So that I put no great Strefs upon that Objection, That the Matter of it is not False; and, for Sedition, it is that which every Libel carries in itself; and as every Trespass implies *Vi & Armis*, so every Libel against the Government carries in it Sedition, and all the other Epithets that are in the Information: This is my Opinion as to the Law in general.

I will not debate the Prerogatives of the King, nor the Privileges of the Subject; but as this Fact is, I think, these venerable Bishops did meddle with that which did not belong to them; they took upon them, in a Petitionary way, to contradict the actual Exercise of the Government, which, I think, no private particular Persons, or single Body, may do.

Ld. Ch. Just. Gentlemen of the Jury, Have you a mind to Drink before you go?

Jury. Yes, my Lord, if you please.

[Wine was sent for by the Jury.]

Juryman. My Lord, we humbly pray, that your Lordship would be pleas'd to let us have the Papers that have been given in Evidence.

Ld.

Ld. Ch. Just. What is it that you would have, Sir?

Mr. Soll. Gen. He desires this, my Lord, That you would be pleas'd to direct that the Jury may have the use of such Writings and Statute Books as may be necessary for them to make use of.

Ld. Ch. Just. The Statute Book they shall have.

Mr. Soll. Gen. But they can have no Papers, but what are under Seal.

Mr. Serj. Levinz. They may have them by Consent, and they may have a Copy of the Information.

Ld. Ch. Just. They shall have a Copy of the Information, and the Declarations under Seal.

Mr. Pollixfen. If they have those and the Libel (as they call it) they will not need a Copy of the Information.

Mr. Att. Gen. My Lord, we pray that your Lordship would be pleas'd to ascertain what it is they shall have.

Ld. Ch. Just. They shall have a Copy of the Information, the Libel, and the Declarations under the Great Seal.

Mr. Soll. Gen. But not the Votes of the House of Commons, nor the Journals, for they are not Evidence.

Ld. Ch. Just. No, I don't intend they shall.

Sir Rob. Sawyer. My Lord, we pray they may have the whole Petition.

Mr. Just. Holloway. That is, with the Direction and Prayer, you mean.

Mr.

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Mr. Att. Gen. Yes, with all our Hearts.

[Then the Court arose, and the Jury went together to consider of their Verdict, and staid together all Night, without Fire or Candle.]

On Saturday the 30th Day of June, Anno Dom. 1688, about Ten of the Clock in the Morning, the Archbishop, and the rest of the Bishops, came again into the Court, and immediately after the Jury were brought to the Bar.

Sir Sam. Astry. Cryer, Take the Appearance of the Jury. Sir Roger Langley.

Sir Rog. Langley. Here.

Cryer. Vous avez, &c.

[And so all the rest were call'd, and answer'd.]

Then Proclamation for Silence was made.

Sir Sam. Astry. Gentlemen, are you agreed on your Verdict?

Jury. Gentlemen, are you agreed on your Verdict?

Jury. Yes.

Sir Sam. Astry. Who shall say for you?

Jury. Foreman.

Sir Sam. Astry. Do you find the Defendants, or any of them, Guilty of the Misdemeanor whereof they are impeached, or Not Guilty?

Foreman. NOT GUILTY.

Sir

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Sir Sam. Astry. Then hearken to your Verdict, as the Court hath recorded it——You say, the Defendants, and every one of them, are *NOT GUILTY* of the Misdemeanor whereof they are impeached ; and so you say all ?

Jury. Yes.

[*At which there were several great Shouts in the Court, and throughout the Hall.*]

Mr. Solicitor-General taking Notice of some Persons in Court that shouted, mov'd very earnestly that they might be committed ; whereupon a Gentleman of Grays-Inn was laid hold on, but was soon after discharg'd. And after the Shouting was over, the Lord Chief-Justice reproving the Gentleman, said,

L. Ch. Just. Sir, I am as glad as you can be, that my Lords the Bishops are acquitted ; but your Manner of rejoicing here in Court is indecent ; you might rejoice in your Chamber, or elsewhere, and not here.

[*Then speaking to Mr. Attorney, he said,*]
Have you any Thing more to say to my Lords the Bishops, Mr. Attorney ?

Mr. Att. Gen. No, my Lord.

[*Then the Court arose, and the Bishops went away.*]

F I N I S.

